

Court No. - 29

Case :- WRIT - C No. - 39402 of 2018

Petitioner :- Ram Lautan

Respondent :- Uttar Pradesh Power Corporation And 3 Others

Counsel for Petitioner :- Vinay Kumar Yadav, Daya Shanker Yadav

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Pankaj Mithal, J.

Hon'ble Pankaj Bhatia, J.

Heard learned counsel for the parties.

The petitioner is aggrieved by the electricity bills dated 5.9.2013 and 4.4.2014. On the challenge made to the said bills, the writ petition was disposed of on 15.2.2016 with the direction to the petitioner to raise a dispute in accordance with the clause 6.5 of the Electricity Supply Code, 2005. The petitioner has preferred objections on 14.3.2016 under clause 6.5 of the Electricity Supply Code, 2005 but without deciding the same, the recovery is being pressed against him.

Sri Mahboob Ahmad, learned counsel for the respondent no.2 submits that a new Electricity Division, namely Vidut Vitran Khand Chail, District Kaushambi has been carved out and the objections of the petitioner have to be considered by the Executive Engineer of the said Division. The petitioner has already been issued a notice dated 28.11.2018 by the Executive Engineer to appear before him on 10.12.2018 for the purpose of hearing of the said objections. It means that the objections of the petitioner till date have not been decided.

In view of the aforesaid facts and circumstances of the case, we dispose of the writ petition with the liberty to the petitioner to appear before the Executive Engineer, Vidut Vitran Khand Chail, District Kaushambi on 10.12.2018 and to press his objections under clause 6.5 of the

Electricity Supply Code, 2005 before him and it is expected that the same shall be considered and decided by a speaking order in accordance with law and till then the respondents shall not press any recovery of the outstanding amount as per the bills referred to above.

Order Date :- 3.12.2018

Hasnain